

		no showing that the violation was willful. Further, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate at this time. Tentative Ruling: Defendant's request for terminating sanctions is DENIED. <u>Sanctions:</u> Defendant requests sanctions in the amount of \$2,573.70 calculated as follows: \$300/hr. x. 6.4hrs.; plus \$60 filing fee and \$653.70 for a Certificate of Non-Appearence. The amount requested is excessive and is reduced to \$1,313.70 (\$300/hr. x 2hrs. + \$60 filing fee + \$653.70).] Tentative Ruling: Defendant's request for monetary sanctions is GRANTED in the reduced amount of \$1,313.70. Plaintiff is ORDERED to pay \$1,313.70 in monetary sanctions to Defendant within 20 days' notice of this ruling. Plaintiff is ORDERED to comply with the Court's 12-30-25 Order and appear for her deposition within 20 days' notice of this ruling. The Court warns Plaintiff that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions. Plaintiff to give notice.
9	Huynh vs. Williams 2024-01436961	1. Motion for Reconsideration 2. Case Management Conference Parties have stipulated to continue the motion to 09/14/2026 at 1:45 pm in Department C15. The Case Management Conference is hereby also continued to 09/14/2026 at 1:45 pm in C15.

10	Jin and Yu, LLC vs. Pup Pup Hooray, LLC 2024-01418427	Motion for Judgment on the Pleadings Defendants Andy Atiyeh and Lannette Atiyeh move for Judgment on the Pleadings as to Plaintiff Jin and Yu, LLC’s Complaint. Although Defendants Notice of Motion states that the Motion is supported by a concurrently filed Request for Judicial Notice, no Request for Judicial Notice was filed with the Court. (See ROA 178, 181, 184.) Defendants move for judgment on the pleadings pursuant to Code of Civil Procedure section 438. <u><i>Res Judicata and Collateral Estoppel</i></u> Defendants argue res judicata and collateral estoppel bar Plaintiffs claims. This court has ruled on Defendants’ arguments based on collateral estoppel and res judicata twice before. First, on 2/3/25, in ruling on Defendants’ Motion to Dismiss in which Defendant argued forum non conveniens, res judicata and collateral estoppel, the court treated the motion as a general demurrer and ruled that “Defendant has failed to show that either res judicata or collateral estoppel apply.” (ROA 80.) Second, on 8/11/25, in ruling on Defendants’ Demurrer in which Defendants again argued res judicata and collateral estoppel, the court once again rejected these arguments finding the court had already ruled on these arguments. (ROA 138.) This is the third time Defendants argue res judicata and collateral estoppel. Code of Civil Procedure section 438, subdivision (g) provides “The motion provided for in this section may be made even though either of the following conditions exist: (1) The moving party has already demurred to the complaint or answer, as the case may be, on the same grounds as is the basis for the motion provided for in this section and the demurrer has been overruled, provided that there has been a material change in applicable case law or statute since the ruling on the demurrer.” Here, Defendants raise the same arguments based on res judicata and collateral estoppel without showing an intervening change in law. Therefore,
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